

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

-----X  
EMILY DURAN,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY  
POLICE DEPARTMENT, POLICE OFFICER ULLAH (first name  
is unknown at this time), POLICE OFFICER LAU (first name is  
unknown at this time), POLICE OFFICER PAYANO (first name is  
unknown at this time) , in their personal and official capacity and  
POLICE OFFICER "John Doe" of the 94<sup>th</sup> Precinct (name is not  
known at this time) in his personal and official capacity,

Defendant (s),  
-----X

## SUMMONS AND COMPLAINT

Index No. \_\_\_\_\_  
Plaintiff(s) designates  
Kings County  
as the place of trial  
The basis of venue is  
location of arrest  
Richardson and Kingsland Avenue  
Brooklyn, NY  
County of Kings

To the above named Defendant(s)

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: February 1, 2021

### Defendant's Addresses:

Notice: The object of this action is to recover for personal injury  
due to defendant(s) negligence

The relief sought is Monetary Damages

Upon your failure to appear, judgment will be taken against you by default with interest from 10/16/19 and the costs of this action.

/s/ Alexander Roytblat  
**BY: ALEXANDER ROYTBAT, ESQ.**  
**This SUMMONS AND COMPLAINT**  
**and the papers on which it is based, are**  
**certified pursuant to Section 130-1.1-a**  
**of the rules of the Chief Administrator**  
**(22NYCRR)**  
**LAW OFFICE ROYTBAT, PLLC**  
**Attorney(s) for Plaintiff(s)**  
**Office and Post Office Address**  
**2663 Coney Island Avenue, 2<sup>nd</sup> Floor**  
**Brooklyn, New York 11223**  
**(718) 872-6374**

### DEFENDANT(S) ADDRESS(ES)

THE CITY OF NEW YORK  
100 Church Street  
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT  
100 Church Street  
New York, NY 1007

POLICE OFFICER ULLAH  
94<sup>th</sup> Precinct  
100 Meserole Avenue  
Brooklyn, NY 11222

POLICE OFFICER LAU  
94<sup>th</sup> Precinct  
100 Meserole Avenue  
Brooklyn, NY 11222

POLICE OFFICER PAYANO  
94<sup>th</sup> Precinct  
100 Meserole Avenue  
Brooklyn, NY 11222

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

-----X  
EMILY DURAN,

Plaintiff,

-against-

VERIFIED COMPLAINT

Index No.:

THE CITY OF NEW YORK, THE NEW YORK CITY  
POLICE DEPARTMENT, POLICE OFFICER ULLAH  
(first name is unknown at this time), POLICE OFFICER  
LAU (first name is unknown at this time), POLICE  
OFFICER PAYANO (first name is unknown at this time),  
in their personal and official capacity and POLICE  
OFFICER "John Doe" of the 94<sup>th</sup> Precinct (name is not  
known at this time) in his personal and official capacity,

Defendants,

-----X

Plaintiff, complaining of the defendants, by his attorney, upon information and belief,

respectfully allege(s):

AS AND FOR A FIRST CAUSE OF ACTION  
ON BEHALF OF PLAINTIFF EMILY DURAN

1. That at all the times herein mentioned the defendant THE CITY OF NEW YORK, (hereinafter referred to as NYC), was and still is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
2. That defendant THE NEW YORK CITY POLICE DEPARTMENT (hereinafter referred to as NYPD) was and is an agency of the CITY.
3. That at all the times herein mentioned, the defendant POLICE OFFICER ULLAH (first name is unknown at this time) hereinafter referred to as "ULLAH" was and still is a police officer employed by defendant, NYC.
4. That at all the times herein mentioned, the defendant POLICE OFFICER LAU (first

name is unknown at this time) hereinafter referred to as “LAU” was and still is a police officer employed by defendant, NYC.

5. That at all the times herein mentioned, the defendant POLICE OFFICER PAYANO (first name is unknown at this time) hereinafter referred to as “PAYANO” was and still is a police officer employed by defendant, NYC.

6. That at all the times herein mentioned, the defendant POLICE OFFICER “JOHN DOE” was and still is a police officer employed by defendant, NYC.

7. That at all the times herein mentioned, the defendant EMILY DURAN, was and is a resident of the County of Kings State of New York.

8. That notice of plaintiff's claim and notice of intention to sue and of the time when and the place where the injuries alleged herein were incurred and sustained was duly filed by the plaintiffs with the Corporation Counsel of the defendant NYC and with the Comptroller of the defendant NYC, with the Legal Department of the NEW YORK CITY POLICE DEPARTMENT (hereinafter referred to as NYPD), within 90 days after the cause of action herein accrued.

9. That 30 days have elapsed since filing Notice of Claim and that a hearing was not held.

10. That more than 30 days have elapsed since the demand for claim upon which this action was founded was presented for adjustment and that the Comptroller has neglected and refused to make adjustment or payment thereof for said period of 30 days after such presentation, and that this action is commenced within one year after the cause of action accrued.

11. That on July 28, 2019, at approximately 3:00 PM, defendants, ULLAH, LAU, PAYANO and “JOHN DOE” unjustifiably, maliciously, wantonly and falsely accused of and maliciously prosecute plaintiff with the violations of the New York Penal Law of aggravated harassment.

12. That on July 28, 2019, at approximately 3:00 PM, defendants, ULLAH, LAU, PAYANO

and “JOHN DOE” unjustifiably detained and arrested, verbally and physically abused plaintiff and did commit an assault and battery upon plaintiff, causing personal injuries, and bodily harm.

13. That on July 28, 2019, at approximately 3:00 PM, defendants, ULLAH, LAU, PAYANO and “JOHN DOE” did handcuff, falsely arrest, falsely charge, unlawfully detain and maliciously prosecute plaintiff with the penal law violations of criminal contempt.

14. That the aforesaid acts of defendants were willful, intentional and unwarranted and without any just cause or provocation.

15. That at all times herein mentioned, and specifically on July 28, 2019, defendants, ULLAH, LAU, PAYANO and “JOHN DOE”, were on duty as Police Officer for defendants NYC and NYPD.

16. That at all the times herein mentioned, and specifically July 28, 2019, defendants, ULLAH, LAU, PAYANO and “JOHN DOE”, were in uniform as Police Officer for defendants NYC and NYPD.

15. That at all the times herein mentioned, and specifically July 28, 2019, defendants, ULLAH, LAU, PAYANO and “JOHN DOE”, were acting within the scope of his employment as police officer for defendant NYC and NYPD.

16. That the defendants NYC, NYPD, d defendants, ULLAH, LAU, PAYANO and “JOHN DOE”, in their personal and official capacity, ALL POLICE OFFICERS INVOLVED IN THE INCIDENTS CLAIMED HEREIN, AND ALL SUPERVISORY POLICE OFFICERS VESTED AND CHARGED WITH COMANDING AUTHORITY OVER THE POLICE OFFICERS AS CLAIMED HEREIN all in their individual and official capacity, their agents, servants and/or employees were negligent in performing their duties; in failing to protect plaintiff from actual and imminent harm; in hiring and/or retaining in its employ personnel who are violent and/or possess violent propensities; who would assault and commit battery on law abiding individuals;

law enforcement personnel who make an arrest without reasonable cause; in failing to adequately train and supervise its personnel; in causing, allowing and/or permitting unwarranted use of force and restraint against claimant; and in causing, allowing or permitting its personnel to improperly effectuate arrest, all in violation of statutes, ordinances and regulations.

17. That the defendants, ULLAH, LAU, PAYANO and “JOHN DOE”, their agents, servants and/or employees owed a duty of care to plaintiff, EMILY DURAN not to negligently and carelessly accuse of and maliciously prosecute her with crimes.

18. That the defendants, ULLAH, LAU, PAYANO and “JOHN DOE”, their agents, servants and/or employees owed a duty of care to plaintiff, EMILY DURAN, breached said duty in negligently and carelessly accusing him of and maliciously prosecuting him for allegedly violating New York State Penal Law crime of aggravated harassment.

19. That said occurrence and the resulting prolonged incarceration and personal injuries to the said plaintiff were caused through no fault of his own but were caused solely and wholly by reason of the negligence of the aforementioned defendants as set forth above.

20. That by reason of the foregoing, the said plaintiff was caused to sustain prolonged incarceration, serious, harmful and permanent injuries; has been and will be caused great pain, shock, and mental anguish and suffering; has become and still continues to be sick, sore, and still continues to be sick, sore, lame and disabled; has been as he has been informed and verily believes, permanently injured; has incurred and will incur great expense for medical care and attention; has been and will be prevented from attending to his usual duties; vocation and avocation; unable to commence employment and therefore incurred substantial loss of wages for such period of time in all to his damages both compensatory and exemplary in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court.

AS AND FOR A SECOND CAUSE OF ACTION  
ON BEHALF OF PLAINTIFF EMILY DURAN

21. The plaintiff repeats, reiterates, and re-alleges each and every allegation contained in paragraphs 1 through 20 of this complaint with the same force and effect as though fully set forth herein.

22. That on or about July 28, 2019, defendants ULLAH, LAU, PAYANO and “JOHN DOE” did verbally, physically, intentionally, maliciously and deliberately abuse the plaintiff with neither provocation nor privilege and did commit an assault and battery upon plaintiff, causing severe personal injuries and serious and permanent bodily harm to the plaintiff .

23. That at the time of such malicious prosecution, the defendants, ULLAH, LAU, PAYANO and “JOHN DOE” were employees of the defendants NYC and NYPD and was acting as the defendants' agent in doing the acts complained of herein and was acting within the scope of his authority and while he was acting or attempting to be acting in the defendant's interest.

AS AND FOR A FIFTH CAUSE OF ACTION  
ON BEHALF OF PLAINTIFF EMILY DURAN

24. The plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs 1 through 23 of this complaint with the same force and effect as though fully set forth herein.

25. That on or about July 28, 2019, the defendants alleged that the plaintiff was committing aggravated harassment, thereupon without warrant, probable cause or sufficient justification, arrested the plaintiff on the alleged charges and restrained and booked the plaintiff and deprived the plaintiff of his liberty.

26. That the charges filed by the defendants were false and unsupported by the facts or the evidence.

27. That the defendants knew that the charges were false and unsupported by the facts or the evidence.

28. That in making this charge and in causing the arrest and detention of the plaintiff the defendants acted maliciously and wrongfully and with improperly and with intent to injure the plaintiff and with reckless disregard of the safety of the plaintiff as well as readily available exculpatory evidence.

29. That the Kings County Office of the District Attorney declined to prosecute the charges brought by the defendants and the criminal matter was disposed of in plaintiff's favor.

30. That at the time of such malicious prosecution, the defendant ULLAH of the 94<sup>th</sup> Police Precinct (names are currently unknown), in their personal and official capacity, ALL POLICE OFFICERS INVOLVED IN THE INCIDENTS CLAIMED HEREIN, AND ALL SUPERVISORY POLICE OFFICERS VESTED AND CHARGED WITH COMANDING AUTHORITY OVER THE POLICE OFFICERS AS CLAIMED HEREIN all in their individual and official capacity were employees of the defendants NYC, and NYCD and were acting as the defendants', NYC and NYPD agents in doing the acts complained of herein and were acting within the scope of their authority and while they were acting or attempting to be acting in the defendants' interest.

31. That at the time of such malicious prosecution, the defendant LAU of the 94th Police Precinct (names are currently unknown), in their personal and official capacity, ALL POLICE OFFICERS INVOLVED IN THE INCIDENTS CLAIMED HEREIN, AND ALL SUPERVISORY POLICE OFFICERS VESTED AND CHARGED WITH COMANDING AUTHORITY OVER THE POLICE OFFICERS AS CLAIMED HEREIN all in their individual and official capacity, acted with malice and without probable cause in making complaint in making false statements against plaintiff, in that the defendants did not honestly and reasonably



believe that there were grounds for the action since defendant had no facts or evidence to establish any wrongdoing on the part of plaintiff

32. That at the time of such malicious prosecution, the defendant PAYANO of the 94th Police Precinct (names are currently unknown), in their personal and official capacity, ALL POLICE OFFICERS INVOLVED IN THE INCIDENTS CLAIMED HEREIN, AND ALL SUPERVISORY POLICE OFFICERS VESTED AND CHARGED WITH COMANDING AUTHORITY OVER THE POLICE OFFICERS AS CLAIMED HEREIN all in their individual and official capacity, acted with malice and without probable cause in making complaint in making false statements against plaintiff, in that the defendants did not honestly and reasonably believe that there were grounds for the action since defendant had no facts or evidence to establish any wrongdoing on the part of plaintiff

33. That at the time of such malicious prosecution, the defendant POLICE OFFICER "JOHN DOE" of the 94th Police Precinct (names are currently unknown), in their personal and official capacity, ALL POLICE OFFICERS INVOLVED IN THE INCIDENTS CLAIMED HEREIN, AND ALL SUPERVISORY POLICE OFFICERS VESTED AND CHARGED WITH COMANDING AUTHORITY OVER THE POLICE OFFICERS AS CLAIMED HEREIN all in their individual and official capacity, acted with malice and without probable cause in making complaint in making false statements against plaintiff, in that the defendants did not honestly and reasonably believe that there were grounds for the action since defendant had no facts or evidence to establish any wrongdoing on the part of plaintiff

34. That by reason of the foregoing, the said plaintiff was caused to sustain serious, harmful and permanent injuries; has been and will be caused great pain, shock, and mental anguish and suffering; has become and still continues to be sick, sore, and still continues to be sick, sore, lame and disabled; has been as he has been informed and verily believes, permanently injured;

has incurred and will incur great expense for medical care and attention; has been and will be prevented from attending to his usual duties; vocation and avocation; unable to commence employment and incurred substantial economic damages for such period of time in all to his damages both compensatory and exemplary in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court.

AS AND FOR A SIXTH CAUSE OF ACTION  
ON BEHALF OF PLAINTIFF EMILY DURAN

35. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 34 of this complaint with the same force and effect as though fully set forth herein.

36. That on July 28, 2019 plaintiff was charged by the defendants with aggravated harassment.

37. That this arrest was illegal and without basis in fact or authority of law.

38. That plaintiff was deprived of his liberty and was held in detention cells until approximately July 28, 2019.

39. As a result of the false arrest and illegal imprisonment which the plaintiff suffered, plaintiff's health was impaired, and plaintiff suffered great mental distress.

40. That by reason of the foregoing, the said plaintiff was caused to sustain serious, harmful and permanent injuries; has been and will be caused great pain, shock, and mental anguish and suffering; has become and still continues to be sick, sore, and still continues to be sick, sore, lame and disabled; has been as he has been informed and verily believes, permanently injured; has incurred and will incur great expense for medical care and attention; has been and will be prevented from attending to his usual duties; vocation and avocation; unable to commence

employment and incurred substantial economic damages for such period of time in all to his damages both compensatory and exemplary in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court.

AS AND FOR A SEVENTH CAUSE OF ACTION  
ON BEHALF OF PLAINTIFF EMILY DURAN

41. The plaintiff repeats, reiterates, and re-alleges each and every allegation contained in paragraphs 1 through 40 of this complaint with the same force and effect as though fully set forth herein.

42. The aforementioned actions of defendants were so outrageous, malicious and shocking that it exceeded all reasonable bounds of decency tolerated by the average member of the community.

43. Defendants acted with the desire and intent to cause plaintiff emotional distress or acted under circumstance known to them which made it substantially certain that they would cause such emotional distress.

44. Defendants acted with utter disregard of the consequences of their actions.

45. That as a direct and proximate result of the actions by the defendants, Plaintiff was caused to suffer the intentional infliction of emotional distress.

46. By reason of the foregoing, defendants became liable to plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A EIGHT CAUSE OF ACTION  
ON BEHALF OF PLAINTIFF EMILY DURAN  
(42 U.S.C. § 1983)

47. The plaintiff repeats, reiterates, and re-alleges each and every allegation contained in paragraphs 1 through 46 of this complaint with the same force and effect as though fully set forth herein.

48. The defendant ULLAH, and certain other police officers whose names are not presently known to plaintiff, lacked reasonable suspicion to stop and detain the plaintiff, EMILY DURAN, and further lacked any probable cause to arrest him or retain him in prolonged custody.

49. The wrongful stop, false detainment, assault, wrongful arrest, malicious prosecution, and other wrongful acts conducted against the plaintiff by the defendants ULLAH, LAU and PAYANO in their official and individual capacity and POLICE OFFICER “JOHN DOE” of the 94th Police Precinct (names are currently unknown), ALL POLICE OFFICERS INVOLVED IN THE INCIDENTS CLAIMED HEREIN, AND ALL SUPERVISORY POLICE OFFICERS VESTED AND CHARGED WITH COMANDING AUTHORITY OVER THE POLICE OFFICERS AS CLAIMED HEREIN all in their individual and official capacity were committed under color of law, customs, and statutes of the state of New York.

50. Under color of law, the defendants NYC, NYPD, defendants, ULLAH, LAU and PAYANO in their official and individual capacity and POLICE OFFICER “JOHN DOE” of the 94th Police Precinct (names are currently unknown), in his personal and official capacity, ALL POLICE OFFICERS INVOLVED IN THE INCIDENTS CLAIMED HEREIN, AND ALL SUPERVISORY POLICE OFFICERS VESTED AND CHARGED WITH COMANDING AUTHORITY OVER THE POLICE OFFICERS AS CLAIMED HEREIN all in their individual and official capacity deprived the plaintiff EMILY DURAN of his Fourth, Fifth, and Fourteenth Amendment rights to protection from unlawful search and seizure, Equal Protection and Due Process, by falsely arresting, wrongfully detaining, unlawfully, falsely charging the plaintiff with criminal charges, for which there is no evidence or substantiation of an kind and maliciously prosecuting.

51. The accusations of wrongful actions leveled against plaintiff were false and were an attempt to cover up the false arrest, abuse of process, failure to properly investigate, intentional

and false imprisonment, false accusations, discriminatory harassment, malicious prosecution, defamation and abuse of process which has been inflicted by defendants on plaintiff.

52. The false arrest of plaintiff EMILY DURAN without probable cause, and other wrongful acts conducted against the plaintiff by defendants, including, but not limited to defendants' unconstitutionally seizing, falsely arresting, intentionally and falsely imprisoning and detaining, falsely accusing, assaulting, discriminatorily harassing, defaming, and maliciously charging EMILY DURAN constitutes a violation of plaintiff's rights, secured by the Fourth Amendment to the United States Constitution, to be free from unreasonable searches and seizures. Such actions were negligent, reckless, unreasonable and unauthorized, as defendants had a duty to not subject plaintiff to false arrest and detention and summary punishment but failed to prevent same and breached their duty.

53. The defendants NYC, NYPD, defendant, ULLAH, LAU and PAYANO in their official and individual capacity and POLICE OFFICER "JOHN DOE" of the 94th Police Precinct (names are currently unknown), in their personal and official capacity, ALL POLICE OFFICERS INVOLVED IN THE INCIDENTS CLAIMED HEREIN, AND ALL SUPERVISORY POLICE OFFICERS VESTED AND CHARGED WITH COMANDING AUTHORITY OVER THE POLICE OFFICERS AS CLAIMED HEREIN all in their individual and official capacity acted under color of law to deny the plaintiff his constitutional rights to due process and freedom from seizure, by wrongfully detaining the plaintiff at the Kings County Central Booking, wrongfully charging him and holding him under the threat of imprisonment for an indeterminate period of time, without providing a reasonable basis and/or investigation warranting custody, or other due process guarantees secured to the plaintiff by the Fifth and Fourteenth Amendments of the United States Constitution.

54. Such abuse of process was continued by the defendants NYC, NYPD, defendants

ULLAH, LAU and PAYANO in their official and individual capacity and POLICE OFFICER “JOHN DOE” of the 94th Police Precinct (names are currently unknown), ALL POLICE OFFICERS INVOLVED IN THE INCIDENTS CLAIMED HEREIN, AND ALL SUPERVISORY POLICE OFFICERS VESTED AND CHARGED WITH COMANDING AUTHORITY OVER THE POLICE OFFICERS AS CLAIMED HEREIN all in their individual and official capacity, in their refusal to adequately investigate the charges against the plaintiff and to properly review and investigate the actions of defendant officers and officials for their actions against the plaintiff. Specifically, defendants failed to investigate and verify the veracity of the plaintiffs' claims, despite the lack of any significant hearing or consideration by the defendants NYC, NYPD, defendant ULLAH in official and individual capacity and POLICE OFFICER of the 94<sup>th</sup> Police Precinct (names are currently unknown), in their personal and official capacity, ALL POLICE OFFICERS INVOLVED IN THE INCIDENTS CLAIMED HEREIN, AND ALL SUPERVISORY POLICE OFFICERS VESTED AND CHARGED WITH COMANDING AUTHORITY OVER THE POLICE OFFICERS AS CLAIMED HEREIN all in their individual and official capacity for the substantial evidence supporting plaintiff's innocence prior to the arrest and prosecution.

55. As a consequence of defendants' wrongful actions, intentional assault and battery, negligent behavior, and violation of state and federal laws, plaintiff was deprived of his freedom, was subject to great physical harm, was made to suffer great pain and suffering, and was subjected to great fear and terror and personal humiliation and degradation, and continues to suffer pain and mental and emotional distress as a result of the aforesaid unlawful conduct of defendants NYC, NYPD, defendants, ULLAH, LAU, PAYANO and “JOHN DOE”, their, in their personal and official capacity, ALL POLICE OFFICERS INVOLVED IN THE INCIDENTS CLAIMED HEREIN, AND ALL SUPERVISORY POLICE OFFICERS VESTED

AND CHARGED WITH COMANDING AUTHORITY OVER THE POLICE OFFICERS AS CLAIMED HEREIN all in their individual and official capacity.

56. That said occurrence and the resulting personal injuries to the said plaintiff were caused through no fault of his own, but were caused solely and wholly by reason of the negligence of the aforementioned defendants as set forth above.

57. That by reason of the foregoing, the said plaintiff was caused to sustain serious, harmful and permanent injuries; has been and will be caused great pain, shock, and mental anguish and suffering; has become and still continues to be sick, sore, and still continues to be sick, sore, lame and disabled; has been as he has been informed and verily believes, permanently injured; has incurred and will incur great expense for medical care and attention; has been and will be prevented from attending to his usual duties; vocation and avocation for such period of time in all to his damages both compensatory and exemplary in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court.

WHEREFORE, the plaintiff(s) demands judgment against the in an amount which exceeds the jurisdictional limits of all lower courts and which warrants the jurisdiction of this Court, together with the costs and disbursements of each cause of action.

Yours, etc.



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ROYTBLAT LAW GROUP, PLLC  
Attorneys for Plaintiff  
2663 Coney Island Avenue, 2<sup>nd</sup> Floor  
Brooklyn, New York 11223

This SUMMONS AND COMPLAINT and the papers on which it is based, are certified pursuant to Section 130-1.1-a of the rules of the Chief Administrator (22NYCRR)

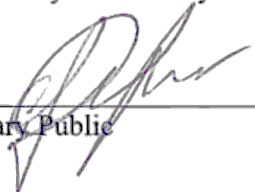
That deponent is the plaintiff in the within action; that deponent has read the foregoing SUMMONS AND COMPLAINT and knows the contents thereof; that same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes it to be true. The grounds of deponent's belief as to all matters not stated upon deponent's knowledge are as follows:

Personal knowledge and investigation in the file.

  
ID Pdb08T7z4xdnRh3ERpqurwZ0i

EMILY DURAN

SWORN TO BEFORE ME THIS  
15<sup>th</sup> day of February 2021

  
Notary Public

ALEXANDER ROYTBAT  
Notary Public, State of New York  
No. 02RO6171336  
Qualified in Kings County 23  
Commission Expires July 23, 2023



*Index No.*SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS-----X  
EMILY DURAN,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER ULLAH (first name is unknown at this time), POLICE OFFICER LAU (first name is unknown at this time), POLICE OFFICER PAYANO (first name is unknown at this time), in their personal and official capacity and POLICE OFFICER "John Doe" of the 94<sup>th</sup> Precinct (name is not known at this time) in his personal and official capacity,

Defendant (s),  
-----X

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**SUMMONS AND COMPLAINT**

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**ROYTBLAT LAW GROUP, PLLC**

Attorneys for Plaintiff

*Office and Post Office Address, Telephone, Facsimile*2663 Coney Island Avenue, 2<sup>nd</sup> Floor

Brooklyn, NY 11223

TELEPHONE (718) 872-6374

**"WE DO NOT ACCEPT SERVICE BY ELECTRONIC TRANSMISSION (FAX)"**

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*Attorney(s) for**Service of a copy of the within is hereby admitted**Dated:,*.....  
*Attorney(s) for*

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**PLEASE TAKE NOTICE**

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*That the within is a (certified) true copy of an ORDER entered in the office of the clerk of the within named court on , 2021.*

**NOTICE OF ENTRY**



*That an Order of which the within is a true copy will be presented for settle to the Hon. one of the judges of the within named court,*

**NOTICE OF SETTLEMENT**

*at*

*on , 2021, at 10:00 a.m.*